SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202233

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: CHRISTOPHER MARKS

vs.

DEFENDANT: DENALI WATER SOLUTIONS, LLC

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on July 14, 2026, Victor Grant Zlilinskas, Esq. was appointed to preside as Discovery Facilitator to assist the parties to resolve Plaintiff's Motion to Compel Further Written Responses to Document requests. The notice to appoint discovery facilitators was entered on June 30.
Plaintiff Christopher Marks filed the motion on April 24, 2026, with Defendant and Cross-Complainants filing an opposition on July 7. The Reply brief was filed on July 10.

Given the late appointment of the Discovery Facilitator, the Court is not surprised to have not received a Declaration of Non-Resolution from either party MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing, but also requires that "[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party's contentions***." (MCR Civ 2.13H(1), emphasis added.)

The matter is continued to the next motion hearing date of August 28, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have

been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2203564

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: DANIEL BISSMEYER

vs.

DEFENDANT: KONIKU, INC.

NATURE OF PROCEEDINGS: 1) MOTION - RELIEVE COUNSEL
2) MOTION - RELIEVE COUNSEL

RULING

Counsel for Defendants Oshiorenoya E. Agabi and Koniku, Inc. A Delaware Corporation ("Defendants"), Inc, with personal service of papers upon Oshiorenoya Agabi, filed a motion to be relieved as counsel. A long cause jury trial is set for October 20, 2026, and the court anticipates that there will be no further continuances.

Daniel Bissmeyer ("Plaintiff") did not serve an Opposition to Defendants/Cross-Complainant. The failure to oppose is considered consent to the request. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Counsel's motion is therefore GRANTED in it's entirely.

Counsel is to lodge the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2204259

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: JENNIFER SWIFT

vs.

DEFENDANT: UNITED PARCEL SERVICE, INC., ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR PROGRAM

RULING

Both parties have appeals pending with the California Court of Appeal, First Appellate District. Defendant filed its Notice of Appeal on March 30, 2026. Defendants United Parcel Service, et al., filed an appeal to the court's order issued on March 4, 2026. Plaintiff Jenniffer Swift filed a Petition for Writ of Mandate to an order issued by Hon. Andrew Sweet on March 2, 2026. The matter was transferred from Judge Sweet to this department on January 2, 2026.

The court entered an order staying execution and enforcement of prior orders on May 8. 2026.

The pending motions to compel filed by the Plaintiff are also stayed, pending the proceedings before the appellate court.

A Case Management Conference is set for November 18, 2026, at 9 a.m. in this department, re Status of Appeal.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002210

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: LESTER PETRACCA vs. DEFENDANT: ELIZABETH THIERIOT, ET AL	

NATURE OF PROCEEDINGS: MOTION – OTHER: FOR RELIEF FROM VOID JUDGMENT

RULING

This court entered orders denying Defendant Elisabeth Thieriot's motion to vacate default and default judgment and "motion to expunge lien, vacate judgement, declare void orders, and order restitution" on June 5, 2026. The entry of order was followed five days later, on June 10, 2026, with the Defendant filing the motion at bar, in which she seeks the same relief.

Plaintiff Lester Petracca opposes the motion once again, arguing that the filing is now the sixth separate filing from Ms. Thieriot challenging the Court's jurisdiction over the case. Plaintiff asks the court to strike or disregard the motion because:

1. the Memorandum violates this Court's November 14, 2025 order prohibiting Ms. Thieriot from filing any document in this case (except a motion to set aside the default). Ms. Thieriot has already filed several motions to vacate, and has therefore exhausted her authorized filings.
2. the Memorandum is untimely under Code of Civil Procedure ("CCP") section 1005(b), as Ms. Thieriot filed the Memorandum five days after the statutory deadline for a June 5, 2026 hearing.
3. the Memorandum exceeds the 15 page limit imposed by California Rules of Court ("CRC"), rule 3.1113(d), as Ms. Thieriot has already filed approximately 60 pages of briefing in support of her various motions to vacate.
4. the Memorandum merely rehashes the same "void judgment" and "lack of jurisdiction" theories this Court has already rejected, and the authorities Ms. Thieriot cites are distinguishable and do not support the relief she seeks.

For reasons stated in the court's order entered on June 5, 2026, the court strikes request and denies the relief requested therein.

Counsel for Plaintiff to prepare the order.

The court notes Plaintiff has filed a motion to declare the Defendant a vexatious litigant, bar the Defendant from further litigation against the Plaintiff, and to enforce the court's November 14, 2025, order. Plaintiff's motion is on calendar for September 4, 2026.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004949

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: BELVEDERE LAGOON LLC vs. DEFENDANT: HACHMAN CONSTRUCTION INC., ET AL	

NATURE OF PROCEEDINGS: MOTION –SUMMARY ADJUDICATION

RULING

Defendants Hachman Construction, Inc. ("HCI") and Timothy Hachman's ("Hachman"; together with HCI, "Defendants") motion for summary adjudication of Plaintiff Belvedere Lagoon, LLC's ("Plaintiff") Fifth Cause of Action is GRANTED. (Code Civ. Proc., § 437c, subd. (f).) This ruling does not bear on Plaintiff's ability to amend the complaint to assert a Business and Professions Code, section 7031, subdivision (b) claim by Jon and/or Charlotte Doyle.

The Court will consider whether leave to file such an amended pleading is proper in connection with Plaintiff's pending motion for leave to amend.

I. BACKGROUND

This is a construction defect case. According to the complaint, Plaintiff owns a single-family home at 54 Peninsula Boulevard in Belvedere and hired HCI as general contractor for a remodel in 2021. (Complaint, ¶¶ 1, 13, 16.) Plaintiff alleges that HCI ultimately abandoned the project, leaving it substantially incomplete. (*Id.* at ¶¶ 20, 28.) The complaint names as defendants HCI and its principal, Hachman, plus the project's subcontractors as Does. It asserts causes of action for restitution, breach of contract (six counts), disgorgement, and fraud.

The Court now considers Defendants' motion for summary adjudication of Plaintiff's *Fifth* Cause of Action, which is the disgorgement claim.

II. LEGAL STANDARD

Any party may move for summary judgment. (Code of Civ. Proc, § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c); *Aguilar*, *supra*, 25 Cal.4th 826, 843.) Similarly, a party may move for summary adjudication as to a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication . . . shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).) The object of the summary judgment procedure is "to cut through the parties' pleadings" to determine whether trial is necessary to resolve the dispute. (*Aguilar*, *supra*, 25 Cal.4th 826, 843.)

The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar*, *supra*, 25 Cal.4th 826, 850; see Evid. Code, § 110.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Aguilar*, *supra*, 25 Cal.4th 826, 851.) When the moving party is the plaintiff, the initial burden entails "prov[ing] each element of the cause of action entitling the party to judgment[.]" (Code Civ. Proc., s 437c, subd. (p)(1).)

When the moving party is the defendant, the initial burden entails showing "that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) Once the moving party has met its initial burden, the burden shifts to the opposing party to "show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subds. (p)(1)-(2).) "There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar*, *supra*, 25 Cal.4th 826, 845.)

III. DISCUSSION

Evidentiary Objections

Plaintiff's Objections

To the Declaration of Timothy Hachman:

1. Sustained. (Evid. Code, § 350 [relevance].)
2. Overruled.
3. Sustained. (Evid. Code, § 350 [relevance].)
4. Overruled.
5. Sustained. (Evid. Code, § 350 [relevance].)
6. Overruled. The Court reads this to mean that Hachman was not aware of the existence of Plaintiff until it filed this lawsuit. This has some loose relevance as evidence corroborating Hachman's statements that Plaintiff was not paying HCI's invoices.

7. Sustained. (Evid. Code, § 350 [relevance].)

8. Sustained. (Evid. Code, § 350 [relevance].)

9. Sustained. (Evid. Code, § 350 [relevance].)

10. Sustained. (Evid. Code, § 350 [relevance].)

11. Sustained. (Evid. Code, §§ 720, 800, 803 [improper legal opinion]; see also *In re Marriage of Heggie* (2002) 99 Cal.App.4th 28, 30 fn.3 [including legal argument in declarations is "a sloppy practice which should stop. . . . [I]t makes a mockery of the requirement that declarations be supported by statements made under penalty of perjury. The proper place for argument is in points and authorities, not declarations."].)

12. Sustained. (Evid. Code, §§ 720, 800, 803 [improper legal opinion].)

13. Sustained. (Evid. Code, § 350 [relevance].) This motion concerns whether the disgorgement claim is viable given that Plaintiff did not pay Defendants any money. Defendants have not briefed any arguments concerning whether they are considered unlicensed for purposes of Section 7031, so evidence directed at such arguments is irrelevant.

14. Sustained. (Evid. Code, § 350 [irrelevant].)

15. Sustained. (Evid. Code, § 350 [irrelevant].)

To the Declaration of Gabriel Hernandez:

1. Overruled.

2. Overruled.

3. Overruled.

4. Overruled. Hernandez lays a foundation for his personal knowledge of the ownership of the bank account(s) from which the funds were drawn in Paragraph 9(E). Plaintiff has not objected to that testimony on hearsay grounds. Hernandez does not make any statements about the "legal capacity" in which the funds were paid and so does not need to lay a foundation for that. He likewise does not offer any legal conclusions about whether the Doyles paid these bills as agents of Plaintiff. This is a factual statement about who caused HCI to be paid for its work and whose funds were used to make such payments.

5. Overruled.

6. Overruled. To the extent this qualifies as expert opinion (see Evid. Code, § 801; compare Evid. Code, § 800), Hernandez' declaration is sufficient to qualify him to offer it. (See Evid. Code, § 720, subd. (b); Hernandez Dec., ¶¶ 3-6, 9, 9(E).)

7. Overruled.

8. [omitted by Plaintiff]
9. Sustained. (Evid. Code, § 350 [relevance].)
10. Sustained. (Evid. Code, § 350.)
11. Sustained. (Evid. Code, § 350.)
12. Sustained. (Evid. Code, § 350.)
13. Sustained. (Evid. Code, § 350.)
14. Overruled.
15. Sustained. (Evid. Code, § 350.)
16. Sustained. (Evid. Code, § 350.)

Defendants' objections to the Declarations of Jon and Charlotte Doyle are all overruled.

IV. Requests for Judicial Notice

Defendants': The request is granted as to the Declaration of Jon Doyle in Support of Plaintiff's Motion for Summary Judgment/Adjudication. (Evid. Code, § 452, subd. (d).) It is denied as to the date Plaintiff filed its complaint because that is irrelevant. (See *Mozzetti v. City of Brisbane* (1977) 67 Cal.App.3d 565, 578 [material must be relevant to be judicially noticed].) The Court is not here deciding whether an amendment to the complaint to add the Doyles as plaintiffs would be time-barred. It will save that for Plaintiff's pending motion for leave to file an amended complaint. The request is likewise denied as to Exhibits A and C because those are irrelevant.

The Court will judicially notice Exhibit B, the deed granting 54 Peninsula Road from the Doyles to Plaintiff (Evid. Code, § 452; *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 803 ["A court may take judicial notice of a recorded deed."]), although its relevance is very limited.

Plaintiff's request for Judicial Notice is Granted. (Evid. Code, § 452, subd. (d).)

V. Merits

"To protect the public, the Contractors' State License Law ('CSLL'; Bus. & Prof. Code, § 7000 *et seq.*) imposes strict and harsh penalties for a contractor's failure to maintain proper licensure. Among other things, the CSLL states a general rule that, regardless of the merits of the claim, a contractor may not maintain any action, legal or equitable, to recover compensation for 'the performance of any act or contract' unless he or she was duly licensed '*at all times* during the performance of that *act or contract*.' " (*MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co., Inc.* (2005) 36 Cal.4th

412, 418 [quoting Bus. & Prof. Code, § 7031, subd. (a) (hereafter "Section 7031(a)")] [italics supplied by *MW Erectors* court].)

Section 7031(a) "has been referred to as the 'shield' of the CSLL." (*Loranger v. Jones* (2010) 184 Cal.App.4th 847, 854.) The statute also contains a " 'sword' " in Business and Professions Code, section 7031, subdivision (b) ("Section 7031(b)"). (*Ibid.* [quoting *White v. Cridlebaugh* (2009) 178 Cal.App.4th 506, 518].) That provision "authorizes a person who utilizes the services of an unlicensed contractor to bring an action to recover *all* compensation paid to the contractor for his/her work." (*Ibid.* [emphasis in original].)

Plaintiff's Fifth Cause of Action is based on Section 7031(b) and demands disgorgement of all funds paid to HCI. (Complaint, ¶¶ 80, 87.) Defendants argue that Plaintiff's Fifth Cause of Action is meritless because Plaintiff, as distinguished from the individuals associated with it, never paid any funds to HCI and cannot "recover" (Bus. & Prof. Code, § 7031, subd. (b)) funds it did not part with in the first place.

This suit was filed in the name of Plaintiff Belvedere Lagoon LLC only. Plaintiff Belvedere Lagoon LLC consist of Jon and Charlotte Doyle ("the Doyles") and members of the LLC. (RSS No. 23.) They created Plaintiff to hold title to 54 Peninsula Boulevard, the property at the center of this litigation. (RSS No. 33.) The Doyles arranged for Defendants to perform the remodel. (RSS Nos. 28-29.) They are not plaintiffs in this case.

It is undisputed that all of the money paid to HCI in connection with the project at 54 Peninsula Boulevard ($1,582,896.38 in total) was paid from bank accounts that were in the name of John and Charlotte Doyle or their trust, not in the name of Plaintiff, the couple's LLC. (UMF Nos. 7-8; RSS Nos. 7-8; Hernandez Dec., ¶ 9(E) & Ex. 10; see also Jon Doyle Dec., ¶ 11 ["Charlotte and I paid HCI invoices 1 through 17 in the total amount of $1,582,896.38. Those payments were not made from a bank account in Belvedere Lagoon's name."].) "A limited liability company is an entity distinct from its members." (Corp. Code, § 17701.04, subd. (a).) Money held in an account in the name of the Doyles or their trust necessarily belongs to the Doyles or to their trust and not to Plaintiff, a separate legal entity. Plaintiff did not pay any funds to HCI.

Plaintiff necessarily cannot prevail on a cause of action under Section 7031(b) because the section enables "a person who utilizes the services of an unlicensed contractor" to "bring an action . . . to recover all compensation paid to the unlicensed contractor for performance of any act or contract." (Bus. & Prof. Code, § 7031, subd. (b).) The most natural reading of this language is that Section 7031(b) enables a person who paid an unlicensed contractor for his services to claw back the money paid, and a person who did not give an unlicensed contractor any money cannot reap any benefit from the statute. (See *Eisenberg Village etc. v. Suffolk Construction Co., Inc.* (2020) 53 Cal.App.5th 1201, 1211 [Section 7031(a) "precludes an unlicensed contractor (but not the other party to the contract) from enforcing the contract[,]" and if the other party to the contract brings a timely action under Section 7031(b), that provision "requires the unlicensed contractor to *return all compensation received from that party*"] [emphasis added].)

The legislative history of Section 7031(b) indicates, as the Second District remarked in *White*, *supra*, 178 Cal.App.4th 506, that the provision was designed to work in tandem with Section 7031(a) to ensure that "persons who have utilized unlicensed contractors" are treated "consistently" regardless of whether the unlicensed contractor was paid for the job: "In short, those who have not paid are protected from being sued for payment [under Section 7031(a)] and *those who have paid* may recover all compensation delivered [under Section 7031(b)].” (*White*, *supra*, 178 Cal.App.4th 506, 520 [emphasis added].)

In interpreting Section 7031(b), the Court is guided by the Legislature’s intent that Sections 7031(a) and 7031(b) be “mirror image[s]” of each other “to ensure that the rules pertaining to an unlicensed contractor’s compensation rights were consistent regardless whether the contractor is suing or the contractor is being sued.” (*Alatriste v. Cesar’s Exterior Designs, Inc.* (2010) 183 Cal.App.4th 656, 672, 669-670.) Section 7031(a) prohibits an unlicensed contractor from using the courts to go after a client who owes him money for unlicensed work. (See Bus. & Prof. Code, § 7031, subd. (a).) The other side of this coin is a rule that a person who has paid an unlicensed contractor for his services gets to use the courts to claw the funds back. This is Defendants’ interpretation of Section 7031(b). Plaintiff’s interpretation of Section 7031(b) is expansive.

Plaintiff’s primary argument is that the Doyles paid HCI’s invoices in their capacity as Plaintiff’s agents, so “the payments are attributable to [Plaintiff].” (Opposition, p. 8.) This argument does not address the issue that payments made on behalf of the LLC came from the Doyles directly. The payments may be attributable to Plaintiff in the sense that they settled any debt Plaintiff owed to HCI for the remodel project, but that does not affect the reality that Plaintiff did not actually part with any money and so has nothing to recover from HCI. Plaintiff’s argument does not grapple with the fact that as a matter of law, the Doyles and Plaintiff are distinct. The Doyles cannot suggest that their personal assets are as much Plaintiff’s as theirs. Such an argument converts the Plaintiff into a “shell” LLC.

The parties dispute the effect of *Eisenberg*, *supra*, 53 Cal.App.5th 1201. *Eisenberg* considered the statute of limitations applicable to a Section 7031(b) disgorgement claim, which required determining whether the disgorgement remedy was akin to a penalty or, alternatively, a forfeiture. (53 Cal.App.5th 1201, 1211.) In that context, the Second District stated that Section 7031(b)’s disgorgement remedy is not a form of restitution (in which case it would be more akin to a forfeiture) because it is not properly viewed as a “recovery . . . of something that was ‘taken’[.]” (*Ibid.*) Plaintiff makes much of this language.

Eisenberg explained that Section 7031(b)’s remedy is properly viewed not as a recovery of something that was “taken,” but instead as a “recovery of compensation paid under the terms of a contract.” (*Eisenberg*, *supra*, 53 Cal.App.5th 1201, 1211.) “Section 7031 does not invalidate that contract[,]” but rather precludes the unlicensed contractor from enforcing it and allows the other party to recoup the funds it paid under the contract. (See 53 Cal.App.5th 1201, 1211 [the disgorgement claim “requires the unlicensed contractor to return all compensation *received from that party*”] [emphasis added].) The point *Eisenberg* made here is that the disgorgement remedy does not entail the return of something wrongfully pilfered from the plaintiff (see *Eisenberg*, *supra*, 53 Cal.App.5th 1201, 1211 [defining “restitution” to refer to “ ‘the return of money or other property obtained through an improper means to the person from whom the property was taken’”] [quoting *Clark v. Superior Court* (2010) 50 Cal.4th 605, 614]), but instead the return of money the plaintiff paid under a legitimate contract the law has deemed unenforceable by one of the parties “for reasons of policy.” (See *Eisenberg*, *supra*, 53 Cal.App.5th 1201, 1211.) This distinction mattered to the *Eisenberg* court because it affected whether the remedy was properly viewed as a penalty versus a forfeiture. (*Id.* at pp. 1211-1212.) Section 7031(b) allows a plaintiff to be returned something taken unlawfully via the disgorgement remedy. However, the plaintiff must be a proper plaintiff to trigger disgorgement under the statute.

Plaintiff also stresses *Eisenberg*'s statement that Section 7031(b)'s disgorgement remedy is "not intended to" "restore the status quo" (53 Cal.App.5th 1201, 1211), suggesting that this means that an entity that never paid the unlicensed contractor can get a payout under the statute. The full context of the statement is not consistent with that interpretation. *Eisenberg* stated that the function of Section 7031(b) is not to "restore the status quo[,]" but to "provide a windfall to the plaintiff, at the expense of the unlicensed contractor, since the plaintiff also retains the work completed by the contractor." (*Ibid.*) The use of "also" here makes clear that the *Eisenberg* court understood the Section 7031(b) disgorgement plaintiff as getting to "retain" both the finished contracting work and something else. That something else can only be the money associated with the work, and the word "retain" characterizes those funds as something initially belonging to the plaintiff.

Eisenberg's statement that "Section 7031(b) does not require the plaintiff seeking disgorgement to have suffered any injury" (53 Cal.App.5th 1201, 1207) is likewise unavailing, as this refers to the fact that a plaintiff may obtain disgorgement under Section 7031(b) even if the unlicensed contractor's work is flawless. (See *Eisenberg*, *supra*, 53 Cal.App.5th 1201, 1212; *San Francisco CDC LLC v. Webcor Construction L.P.* (2021) 62 Cal.App.5th 266, 277; see also *People v. Experian Data Corp.* (2024) 106 Cal.App.5th 79, 812 [discussing this aspect of *Eisenberg*].) It does not mean that a person or entity who never surrendered any of their money to an unlicensed contractor can maintain a cause of action under Section 7031(b).

In summary, *Eisenberg* is fully consistent with the view that Section 7031(b) functions to compel an unlicensed contractor to return money that was paid to him for unlicensed work to the person who paid it.

The motion for summary adjudication is granted as to the Cause of Action 5.

This ruling has no effect on Plaintiff's ability to amend the complaint to assert a Section 7031(b) disgorgement claim by Jon and/or Charlotte Doyle. Plaintiff has noticed such a motion and the Court will consider whether leave to amend is proper when that motion comes on for hearing. The parties may choose to meet and confer on amending the complaint in an effort to avoid further motion practice.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004951

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: MATTHEW LAW vs. DEFENDANT: BCF I TAM RIDGE LP	

NATURE OF PROCEEDINGS: 1) MOTION – DISCOVERY - DISCOVERY FACILITATOR PROGRAM
2) MOTION – ENTRY OF JUDGMENT

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

The matter is on for further case management and results of mediation on September 21, 2026, at 9 a.m. in this department.

The hearing in the Motion for Judgment on the Pleadings and Motion for Protective Order is off calendar and will be reset if the parties are unable to reach a settlement.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M**.** DEPT: L CASE NO: CV0005174

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: JOHN CARNEY, ET AL

vs.

DEFENDANT: BCF I TAM RIDGE LP

NATURE OF PROCEEDINGS: 1) MOTION – OTHER: JUDGMENT ON THE PLEADINGS
2) MOTION – PROTECTIVE ORDER – DISCOVERY FACILITATOR PROGRAM

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

The matter is on for further case management and results of mediation on September 21, 2026, at 9 a.m. in this department.

The hearing in the Motion for Judgment on the Pleadings and Motion for Protective Order is off calendar and will be reset if the parties are unable to reach a settlement.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005365

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: BELLA MCDOWELL, ET ALL vs. DEFENDANT: BCF I TAM, RIDGE LP	

NATURE OF PROCEEDINGS: 1) MOTION – OTHER; JUDGMENT ON THE PLEADINGS
2) MOTION – PROTECTIVE ORDER -DISCVOERY FACILITATOR PROGRAM

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

The matter is on for further case management and results of mediation on September 21, 2026, at 9 a.m. in this department.

The hearing in the Motion for Judgment on the Pleadings and Motion for Protective Order is off calendar and will be reset if the parties are unable to reach a settlement.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005586

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: AMY HIGH

vs.

DEFENDANT: BCF I TAM, RIDGE LP

NATURE OF PROCEEDINGS: 1) MOTION – OTHER; JUDGMENT ON THE PLEADINGS
2) MOTION – PROTECTIVE ORDER – DISCOVERY FACILITATOR PROGRAM

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

The matter is on for further case management and results of mediation on September 21, 2026, at 9 a.m. in this department.

The hearing in the Motion for Judgment on the Pleadings and Motion for Protective Order is off calendar and will be reset if the parties are unable to reach a settlement.

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IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006318

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: ZILOLA KHASHIMOVA

vs.

DEFENDANT: GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY COMPANY

NATURE OF PROCEEDINGS: MOTION – ATTORNEY'S FEES

RULING

Plaintiff Zilola Khashimova ("Plaintiff") seeks an award of prevailing party compensable attorney's fees, a fee multiplier, fees for drafting the fee motion, and reimbursement for litigation associated costs. The fee and cost Motion is GRANTED.

BACKGROUND

This motion for attorney's fees follows a comprehensive settlement reached after litigation in which the defendant agreed to take back Ms. Khashimova's allegedly defective 2023 Chevrolet Corvette for $138,000. The case included pre litigation discussions, discovery and settlement negotiations.

Plaintiff reports that on December 18, 2025, the parties reached a settlement in principle, which was subsequently memorialized. Under the agreement, defendant agreed to buy back Ms. Khashimova's Corvette for $138,000 and pay her attorney fees and costs as determined by the court on Plaintiff's motion. (Declaration of Aliaksandra Valitskaya ("Valitskaya") Decl. ¶ 7 and Exhibit 1). Defendant also agreed that Ms. Khashimova is the prevailing party for purposes of this motion. (Exhibit 1, ¶ 1(c)). Despite a settlement being reached on December 18 and the statute providing a mandatory form release, the form release was not provided until two months later, on February 19. After defendant paid Ms. Khashimova her damages, Plaintiff's counsel argues that they attempted to resolve the claims for attorney fees and costs with defendant. (Valitskaya Decl. ¶ 7). On April 6, 2026, Plaintiff's counsel sent defendant a proposal to resolve the fee/cost claims. Plaintiff explains that defendant never responded to Plaintiff's counsel's proposal, necessitating this motion. (Valitskaya Decl. ¶ 7).

Defendant General Motors ("GM") argues that this case is a model example of the kind of litigation AB 1755 was designed to streamline in that it was filed, negotiated, and settled in just over seven months. Defendant objects that counsel now seeks

$21,810.00 in fees and costs, including a 20% multiplier. Counsel also objects to paying fees on fees of 9.1 hours at ($5,005.00) for time devoted to drafting this fee motion. (Valitskaya Decl., Ex. 2, p. 4.)

On April 14, 2026, Counsel filed its fee motion, seeking $20,916.00 in fees ($17,430.00 lodestar fees, plus a .2 multiplier of $3,486.00) and $1,790.40 in costs. Defendant argues that the motion is substantially similar to prior fee motions filed by counsel.

LEGAL STANDARD

Attorney's fees are permitted under California law pursuant to the Song Beverly Consumer Warranty Act (Civil Code §§ 1794(d)), which states in the relevant part:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as a part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiff is the prevailing party in this matter. (See *Wohlgemuth v. Caterpillar Inc*. (2012) 207 Cal.App.4th 1252, 1263)

DISCUSSION

Plaintiff succeeded on the merits and the case settled at mediation. Defendant GM raises four arguments in opposition to the prevailing party fee motion. First, GM questions the requested reasonable rate of $600.00/$550.00 per hour for attorney time. Second, GM argues that the hours billed are excessive. Third, GM argues that a multiplier of the fee is unwarranted. Finally, GM argues this case does not warrant a multiplier to account for the risk taken by Plaintiff's counsel, arguing that this was a "typical" lemon law case that required no skill or expertise.

Attorneys' Fees

The court will scrutinize the reasonableness of the fee petition under the "lodestar" method by determining the lodestar, which consists of the number of hours reasonably spent by the reasonable hourly rates for that work on a non-contingency basis. The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo v. Las Virgenes Water District*, (2000) 79 Cal.App.4th 440, 445-446.)

Reasonable Rate.

Plaintiff's counsel Timothy Whelan, Esq., has been practicing law for 18 years. He states in his declaration that he has worked on over a thousand consumer rights claims against various manufacturers and dealers: taking depositions, attending motion hearings and arguing motions, attending mediation sessions, attending settlement conferences attending arbitration hearings, drafting moving papers and pleadings, and otherwise participating in the day-to-day litigation of over 220 cases at a time. Aliaksandra Valitskaya filed a declaration in support of the fee application. S/he has been practicing law for over 11 years, with a career primarily dedicated to consumer litigation such as the matter before the bar. S/he seeks recovery of compensable billing time at $550 per hour.

The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo,* 79 Cal.App.4th 445-446.). "The experienced trial judge is the best judge of the value of professional services rendered in his court." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, citing *Serrano v. Priest (Serrano III)* (1977) 20. Cal.3d 25, 49.)

GM objects to the requested hourly rate as being excessive, arguing that a compensable fee for Marin County is $400 per hour for an attorney with 18 and 11 years of experience, for each lawyer.

Counsel bears the burden of proof to establish "reasonable rates in the local community as a basis for [the fee] award." (*Nemecek & Cole v. Horn* (2012) 208 Cal. App. 4th 641, 652; see also *Graciano v. Robinson Ford Sales, Inc*. (2006) 144 Cal.App.4th 140, 155 [explaining the reasonable hourly rate is that prevailing in the community for similar work].) "The relevant 'community' is that where the court is located." *(Altavion, Inc. v. Konica Minolta Sys. Lab., Inc*. (2014) 226 Cal.App.4th 26, 71.) "[U]se of reasonable rates in the local community, as an integral part of the initial lodestar equation, is one of the means of providing some objectivity to the process of determining reasonable attorney fees." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.).

The court has reviewed the declarations submitted by counsel. The court finds the hourly rates requested by both lawyers to be eminently reasonable, and well in-line with the reasonable compensable rates charged by Marin County attorneys with similar experience.

Hours Worked.

A party who seeks attorney's fees has the initial burden of "documenting the appropriate hours expended." (*ComputerXpress Inc. v. Jackson*, (2001) Cal.App.4th 993, 1020.) Once a documented hour total has been submitted, the opposing party may make objections to the hours claimed. General objections that work is "excessive" or "unreasonable" are insufficient. The objections should be specific. (*Premier Med. Mgmt. v California Ins. Guarantee Ass'n*, (2008) 163 Cal.App. 4th 550, 563.)

The basis for calculating the lodestar "must be the actual hours counsel devoted to the case, less those resulting from ineffective or duplicative use of time." (*Horsford v. Board of Trustees of Cal. State*, (2005) 132 Cal.App. 4th 359, 395.) The court also recognizes these billing records of counsel constitute "verified time statements of the attorneys, as officers of the court, and are entitled to credence in the absence of a clear indication that the records are erroneous." *Id*. at 394.

GM argues that the time billed is excessive and that based on a review of the billing, the Court would be reduce the fees because the hours billed are "unsupported and unreasonable". For example, GM argues that Plaintiff's counsel should not charge for client intake and initial review. GM also argues that the 1 hour charged by the Plaintiff to draft a complaint that resulted in a six figure settlement was excessive. GM argues that counsel should have committed 10 minutes, not :30, for review of GM's answer. GM also alleges that too much time was spent by Plaintiff while drafting and responding to discovery, asking for a reduction of almost 5 hours of compensable time. GM argues, and is correct to highlight, the Plaintiff's compensable time devoted to clerical tasks and asks for a reduction of time of 1.9 hours.

Defense counsel does not disclose the number of defense hours committed to drafting and replying to the complaint, crafting a careful answer, and creating relevant discovery, which makes it difficult for the court to gauge the correctness of whether the time spent by the Plaintiff was reasonable. The plaintiff's billable time and time records are viewed as verified and accurate record of time billing by the lawyers. (See, *Horsford v. Board of Trustees of Cal. State*, (2005) 132 Cal.App. 4th 359, 395). Defense counsel argues that this case was a typical car case. If so, the court presumes that plaintiff counsel routinely expects to be paid for the hours they worked if they prevail. Therefore, fee awards are to be expected if the parties do not settle the fee after client settlement negotiations have concluded.

California courts have consistently held that verified time statements from attorneys carry a presumption of accuracy when submitted in support of fee requests. In *Horsford*, the court articulated the standard that attorney billing records are presumed credible unless there is "a clear indication the records are erroneous." This principle has been repeatedly affirmed. In the *City of Colton v. Singletary*, the court applied this exact standard, holding that "the verified time statements of (an) attorney ( ), as (an) officer( ) of the court, are entitled to credence in the absence of a clear indication the records are erroneous". (*City of Colton v. Singletary*, (2012) 206 Cal.App.4th 751.) The court further noted that when a party fails to point out specific errors in counsel's declaration, it is proper for the trial court to rely on that declaration.

Plaintiff's counsel submitted detailed contemporaneously created billing statements that were attached to the declarations of the lawyer. The billing indicates the firm lawyers dedicated 31.2 hours on this matter.

The court has reviewed the billing statements provided by counsel attached as Exhibit 2 to the Valitskaya Decl. and finds the records to be credible, reasonable and contemporaneously created. The court notes that Defendant is not being charged for administrative time. This declaration is submitted under penalty of perjury by an officer of the court. The court has no basis to suspect that the statements contained in the declaration relating to the work associated with prevailing in this case are not accurate.

The total compensable time approved for plaintiff's counsel is 29.3 hours, including a 1.9 hour cut from time worked by attorney Valiskaya. This reduces the requested lodestar fee from $17,300 to $16,430.

Multiplier.

Plaintiff seeks a multiplier of 20%.

In considering whether to apply a multiplier, the Court should not consider factors which are already included in the lodestar amount, such as extraordinary skill and the difficulty of the question involved. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139.) "Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation." (*Id*. at p. 1139.)

The Court recognizes that Plaintiff's counsel must be compensated for the risk associated with contingency cases. (*Ketchum*, 24 Cal. 4th 1132-1133.) As noted in *Ketchum*, there are two methods a Court may employ to compensate for this risk. One method is to use an adorned lodestar rate, as discussed above. The other method is to use an unadorned lodestar rate and then to award a multiplier to compensate for the contingent nature of the case. The unadorned lodestar rate is the starting point, as it "reflects general local hourly rate[s] for *fee-bearing case;* it does *not* include any compensation for contingent risk, extraordinary skill, or other factors." (*Id*. at 1132-33.) To justify an enhancement, Counsel needed to show: (1) that the case involved novel or complex questions and required a high level of skill; (2) that taking the case precluded other employment by Counsel; and (3) that the fee was contingent in that success was uncertain and Counsel risked nonpayment. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal. App. 4th 785, 819; Ketchum, supra, 24 Cal.4th at 1132, 1139.)

The California Supreme Court has that the "contingent risk" in lemon-law cases is significantly mitigated by the statute's fee-shifting provision, which guarantees reasonable fees and costs to a prevailing buyer. (Graham v DamlerChrysler Corp., (2004) 34 Cal.4th 553, 579; see also Aispuro, 2020 WL 4582677 at *6 (rejecting any enhancement in Song-Beverly case because the risk to counsel for taking the case on contingency was reduced by the possibility of recovering statutory fees).)

The Court elects to use the method of using an unadorned lodestar rate and applying a multiplier to compensate for the contingency risk in this case. The multiplier may also be used to compensate for other factors such as the novelty of the case, the exceptional skill of the representation, and "the extent which the nature of litigation precluded other employment by attorneys." *Id*. at 1132.

The court concludes that this case does not warrant a multiplier. The record does not indicate that this case involved hard fought litigation. Rather, this case involved good lawyers who recognized the value of quickly resolving the case, thereby serving their clients by providing a high level of professionalism.

Hours Spent Drafting the Fee Motion

Plaintiff's counsel is awarded 9.4 hours for the time committed to preparing and filing this motion, drafting supporting declarations, gathering the time billing and summation of costs, and final argument. GM expresses a concern regarding the appropriateness of the time spent on fees on fees. GM recognizes that this case was a routine car case, which settled quickly. That same recognition might have assisted the parties to resolve the fee issue without the need of motion practice, given that statute specifically provides for an award of prevailing party fees. Counsel for Plaintiff would not have had to put fingers to keypad and generate this motion had GM agreed Plaintiff's fee request.

Costs

Exhibit 11 attached to Valiskaya Decl. is a request cost recovery of $1,790.42 for deposition and filing fees. Plaintiff's request for recovery of reasonable costs is GRANTED over GM's objection.

CONCLUSION

In summary, Plaintiff's counsel requested payment for a net total hours of 23.9 hours of compensable time totaling $16,430.

The hourly rates requested by Timothy Whelan, Esq., of $600.00 per hour, and by Aliaksandra Valitskaya of $550 per hour, are eminently reasonable and in-line with what the court would expect a Marin County attorney of equal skill and experience to charge.

Additionally, the Court awards costs of 1,790.40 to Plaintiff for the cost of suit.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M**.** DEPT: L CASE NO: CV0006484

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: JOANNA MAW vs. DEFENDANT: BCF I TAM, RIDGE LP	

NATURE OF PROCEEDINGS: 1) MOTION – OTHER; JUDGMENT ON THE PLEADINGS
2) MOTION – PROTECTIVE ORDER – DISCOVERY FACILITATOR PROGRAM

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

The matter is on for further case management and results of mediation on September 21, 2026, at 9 a.m. in this department.

The hearing in the Motion for Judgment on the Pleadings and Motion for Protective Order is off calendar and will be reset if the parties are unable to reach a settlement.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006549

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: JOSEPH FIGUEIREDO vs. DEFENDANT: BCF I TAM, RIDGE LP	

NATURE OF PROCEEDINGS: 1) MOTION – OTHER; JUDGMENT ON THE PLEADINGS
2) MOTION – PROTECTIVE ORDER – DISCOVERY FACILITATOR PROGRAM

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

The matter is on for further case management and results of mediation on September 21, 2026, at 9 a.m. in this department.

The hearing in the Motion for Judgment on the Pleadings and Motion for Protective Order is off calendar and will be reset if the parties are unable to reach a settlement.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006835

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: FERNANDO JACKSON vs. DEFENDANT: JEFF MACOMBER, ET AL	

NATURE OF PROCEEDINGS: MOTION – SET ASIDE/VACATE ORDER TO SHOW CAUSE

RULING

On March 2, 2026, Plaintiff Fernando Jackson filed a motion to set aside and vacate an order to show cause for his failure to appear in court for a case progress conference on February 23, 2026. The request is GRANTED.

Plaintiff's complaint was filed on June 20, 2025. One of four defendants has been served with the summons and complaint according to the Proof of Personal Service of Summons filed on March 2, 2026; that defendant has not filed a responsive pleading.

The matter is on for a further case management conference on August 24, 2026, at 9 a.m. in this department. Plaintiff is to provide the court with an update regarding service on the remaining defendants at that time.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M**.** DEPT: L CASE NO: CV0006913

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: LOUREECE STONE CLARK vs. DEFENDANT: MARK H. GOLDSTEIN	

NATURE OF PROCEEDINGS: MOTION - LEAVE

RULING

The court entered orders on May 15, 2026, both granting Defendant's motion ordering the Plaintiff to file a verified complaint, and granting Plaintiff's request to set aside a default judgment.

Plaintiff filed a motion on June 2, 2026, seeking leave to file a verified complaint. That very request was granted on May 15. Plaintiff is to file a Verified Complaint within 30 days or by August 17, 2026.

The matter is on for case management and an order to show cause why the Plaintiff's case should not be dismissed on August 19, 2026, at 9 a.m. in this department.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0007850

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: COUNTY OF MARIN

vs.

DEFENDANT: TIM SAKACH

NATURE OF PROCEEDINGS: MOTION – OTHER: PERMANENT INJUNCTION

RULING

The court issued a preliminary injunction to abate a public nuisance located at the property owned by Defendant Tim Sakach on May 28, 2026. The matter is on for hearing on issuance of a Permanent Injunction.

Neither party has filed declarations to provide the court with an update as to whether the nuisance has been (or is being) abated.

Appearances are required to address the necessity of further injunctive relief.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008037

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: RYAN WAGNER, AN INDIVIDUAL

vs.

DEFENDANT: JAGUAR LAND ROVER NORTH AMERICA, LLC, A DELWAWARE LIMITED LIABILITY COMPANY, ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION - STRIKE

RULING

Jaguar Land Rover North America, LLC's ("Defendant") Demurrer to the Answer is SUSTAINED with leave to amend as to the Third, Fifth, Eleventh, Seventeenth, Twenty-First, Twenty Second, Twenty-Fifth, and Twenty-Seventh Affirmative Defenses.

In all other respects it is OVERRULED.

Defendant's Motion to Strike is GRANTED with leave to amend as to the First, Seventh, Eighth, Ninth, Eighteenth, Twenty-Sixth, Thirty-Sixth, Fortieth, and Fiftieth Affirmative Defenses. It is DENIED as to the remaining Affirmative Defenses.

I. PLAINTIFF'S REPLY

Plaintiff's Request to Deem Reply in Support of Demurrer as filed July 10, 2026, is GRANTED. The Reply was timely served. It was ultimately filed July 13, 2026, after being rejected by the clerk's office. The Court sees no prejudice from considering the Reply as timely filed.

II. DEMURRER LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. *(Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins.* Co. (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.)

III. DEMURRER DISCUSSION

A. Meet and Confer Efforts

First, as a procedural matter, the Opposition argues that this Court should treat the demurrer as untimely due to lack of "good faith" meet and confer efforts prior to the 30-day extension. The Court declines to do so, finding the objectives of Code of Civil Procedure section 430.41 have been adequately met.

Having so determined, the Court next turns to the merits of the Demurrer.

B. Grounds for Demurrer

The Demurrer is made pursuant to Code of Civil Procedure section 430.20 on the grounds that the challenged affirmative defenses: 1. Do not state sufficient facts to constitute a defense (§ 430.20(a)); and/or 2. Are uncertain, ambiguous, and unintelligible because they fail to plead ultimate facts, fail to refer to the causes of action they are intended to answer, and/or are pled evasively on "information and belief" regarding matters within Defendant's knowledge (§ 430.20(b)).

C. General Demurrer

Plaintiff generally demurs to the Fourth, Sixth, Tenth, Twelfth, Sixteenth, Nineteenth, Twentieth, Thirty-Fifth, Thirty-Seventh, Thirty-Eighth, Thirty-Ninth, Forty-First, and Forty-Second Affirmative Defenses on the ground that they fail to state facts sufficient to constitute a defense.

After review of each affirmative defense (Laches (4th), Statute of Limitations (6th), State-of-the-Art (12th), Implied Warranty Duration (19th), Disclaimer of Damages (20th), Setoff/Recoupment (10th & 16th), "Rodriguez"/Used Vehicle (35th & 42nd), UCL Safe Harbor (37th), and MMWA Challenges (38th, 39th, 41st)) the Court finds each sufficiently states facts to constitute a defense and is not absolutely barred as matter of law from the face of the answer/complaint.

The general demurrer is therefore OVERRULED.

D. Special Demurrer

Plaintiff specially demurs to the Third, Fifth, Eleventh, Fifteenth, Seventeenth, Twenty-First, Twenty Second, Twenty-Fifth, and Twenty-Seventh Affirmative Defenses on the grounds that they are uncertain, ambiguous, and unintelligible.

Plaintiff argues that the affirmative defenses of Estoppel (3rd), Waiver (5th), Preemption (11th), Comparative Fault (17th), Abuse (21st), Good Faith Dispute (22nd), Negligence of Others (25th), and Alterations (27th) are pled as bare legal conclusions without the requisite "ultimate facts" necessary to provide fair notice of the nature of the defense. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.) With this, the Court agrees. These affirmative defenses are conclusory and not supported by allegations of ultimate facts.

However, Arbitration (15th) is sufficiently pled.

For these reasons the special demurrer to the Third, Fifth, Eleventh, Seventeenth, Twenty-First, Twenty Second, Twenty-Fifth, and Twenty-Seventh Affirmative Defenses is SUSTAINED with leave to amend.

IV. MOTION TO STRIKE LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.)

A. MOTION TO STRIKE DISCUSSION

The motion to strike is made pursuant to Code of Civil Procedure sections 435, 436, and 437 on the grounds that the matters to be stricken constitute: 1. Irrelevant and improper matter (Code Civ. Proc., § 436, subd. (a)), including defenses that are legally inapplicable, mere denials ("traverses") improperly pled as affirmative defenses, or procedural surplusage; and 2. False and improper matter (Code Civ. Proc., § 436, subd. (a)), including allegations pled on "information and belief" that are contrary to facts presumptively within Defendant's knowledge and/or possession.

Plaintiff moves to strike the following specific portions of the Answer:

1. First Affirmative Defense (Failure to State Cause of Action): Strike the entire defense (Page 2, lines 3-5) as improper matter because it is a ground for demurrer, not an affirmative defense.

2. Second Affirmative Defense (Unclean Hands): Strike the entire defense (Page 2, lines 8-9) as improper boilerplate pled without supporting facts.

3. Seventh Affirmative Defense (Mitigation of Damages): Strike the entire defense (Page 3, lines 8-11) as improper boilerplate pled without supporting facts.

4. Eighth Affirmative Defense (Good Faith Belief): Strike the entire defense as improper matter because it is a denial of the "willfulness" element, and false matter because Defendant cannot plead its own state of mind on "information and belief."

5. Ninth Affirmative Defense (Complete Performance): Strike the entire defense (Page 3, lines 19-21) as improper matter because it is a mere denial of the element of breach.

6. Thirteenth Affirmative Defense (Economic Loss Rule): Strike the entire defense (Page 4, lines 13-17) as irrelevant matter because the doctrine does not apply to statutory warranty claims.

7. Fourteenth Affirmative Defense (Failure to Provide Notice): Strike the entire defense (Page 4, lines 20-22) as false matter because it contradicts the facts of Plaintiff's repair presentations and improper matter because it denies a condition precedent.

8. Eighteenth Affirmative Defense (Vehicle Fit for Intended Purpose): Strike the entire defense (Page 5, lines 12-16) as improper matter because it is a mere denial of the implied warranty of merchantability.

9. Twenty-Fourth Affirmative Defense (Fees and Costs): Strike the entire defense (Page 6, lines 18-22) as irrelevant matter because it addresses remedies/sanctions, not liability.

10. Twenty-Sixth Affirmative Defense (Good Faith Evaluation): Strike the entire defense (Page 7, lines 11-13) as improper/false matter for the same reasons as the Eighth Defense.

11. Thirty-First through Thirty-Fourth Affirmative Defenses (Punitive Damages): Strike these defenses (Pages 8-9) as irrelevant boilerplate constitutional challenges.

12. Thirty-Sixth Affirmative Defense (UCL Standing): Strike the entire defense (Page 10, lines 7-9) as improper matter because it is a mere denial of the injury element.

13. Fortieth Affirmative Defense (Compliance with Warranty): Strike the entire defense (Page 11, lines 1-4) as improper matter because it is a mere denial of breach.

14. Forty-Third through Forty-Ninth Affirmative Defenses (AB 1755 / SB 26 Procedural Bars): Strike these defenses (Pages 11-12) as irrelevant and false matter because Defendant concurrently pleads that the vehicle is "used" (barring application of the statute) and because Defendant possesses the notice it claims is missing.

15. Fiftieth Affirmative Defense (Additional Defenses): Strike the entire defense (Page 13, lines 3-5) as improper surplusage that attempts to circumvent the code provisions for amendment.

The Motion to Strike is GRANTED with leave to amend as to the First and Fiftieth Affirmative Defense on the grounds that they are not a recognized affirmative defenses.

It is also GRANTED with leave to amend with respect to the Second and Seventh Affirmative Defenses on the grounds that they are boilerplate affirmative defenses, pled without requisite factual allegations, and as to the Eighth, Ninth, Eighteenth, Twenty-Sixth, Thirty-Sixth, and Fortieth Affirmative Defenses on the grounds that they constitute improper denials rather than affirmative defenses.

The Motion to Strike is DENIED on all remaining grounds.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008257

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: KATARINA BORDEAUX vs. DEFENDANT: AMERICAN HONDA MOTOR CO., INC	

NATURE OF PROCEEDINGS: MOTION – CHANGE OF VENUE

RULING

Defendant American Honda a motion to approve for change of venue, with a request to transfer the case from Marin County, Superior Court of California, to Sacramento County Superior Court, pursuant to Code of Civil Procedure section 397(c).

Defendant asserts that the operative facts and relevant parties have no connection to Marin County. Defendant asserts that the events giving rise to these claims occurred in Sacramento County. Specifically, (1) the Subject Vehicle was purchased from Elk Grove Honda – a dealership located in Sacramento County; (2) the alleged misrepresentations and contractual negotiations occurred in Sacramento County; (3) the Subject Vehicle was exclusively serviced at a dealership in Sacramento County; and (4) all relevant service and diagnostic records are located in Sacramento County.

Plaintiff has not filed a response, nor was an opposition to the venue change filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) Defendant's motion is therefore GRANTED in it's entirely.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by

order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008259

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: ATHER IMRAN

vs.

DEFENDANT: AMERICAN HONDA MOTOT CO., INC.

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM
2) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM
3) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM
4) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on July 13, 2026, Robert James Begley, Esq. was appointed to preside as Discovery Facilitator to assist the parties to resolve Defendant's Motions to Compel answers to interrogatories and requests for admissions.

The court's notice to appoint discovery facilitators was entered on June 30.

Plaintiff filed opposition papers to the Motions to Compel on July 7. Reply briefs were filed by the Defendants on July 10.

Given the late appointment of the Discovery Facilitator, the Court is not surprised to have not received a Declaration of Non-Resolution from either party MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing, but also requires that "[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party's contentions***." (MCR Civ 2.13H(1), emphasis added.)

The matter is continued to the next motion hearing date of August 28, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009043

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: PRAVEEN SEVUGAN

vs.

DEFENDANT: PRESIDIO BRANDS, INC. DBA EVERY MAN JACK

NATURE OF PROCEEDINGS: MOTION – STRIKE

RULING

Defendant's motion to strike is granted. Plaintiff is granted leave to amend his Complaint.

The Court grants Defendant's motion to strike reference to Government Code Section 8547.8(c), without leave to amend.

I. Procedural Deficiency

The Court draws Defendant's attention to Local Rule 2.8(C)2, which requires attachment of the operative pleading as an exhibit to the motion to strike.

II. Allegations in Plaintiff's Complaint

Plaintiff Praveen Sevugan filed his Complaint against Defendant Presidio Brands, Inc. dba Every Man Jack on February 4, 2026, alleging that he is an Indian American who began working as Defendant's Senior Brand Manager in 2023. Plaintiff first reported to an interim Vice President of Marketing, but then this role was assumed by Ellie Off, a Caucasian female, who had been out on maternity leave. Ms. Off had five direct reports, including Plaintiff and four Caucasian females.

Ms. Off would often refer to men generally and male customers as uneducated or stupid and referred to Plaintiff as the token "male representative/perspective during the all-female marketing team meetings. She would dismiss Plaintiff's input in front of the entire team, and after hearing his input in one meeting she and/or another team member called his recommendation "crass and dumb – just like the Company's male customers". At other meetings, Ms. Off dismissed his ideas and stated that "men are overwhelmingly primitive with their self-care routines and lack basic education and knowledge for sensitive skin products to work" and that certain scents were associated with "uneducated, toxic and stupid men". Ms. Off made other comments critical of men in other settings as well. Ms. Off also frequently told Plaintiff that she viewed him as a "numbers and data guy", as opposed to a customer-facing employee, which Plaintiff alleges is a stereotype within the Indian American community.

Plaintiff also alleges that Ms. Off referred to Plaintiff as a simple "errand boy" and stated that he "belonged in the back room". Plaintiff began to refrain from sharing his opinions during the weekly meetings and found himself ostracized and shut out from key discussions and decisions as well as social interactions. In an interview process attended by Plaintiff, Ms. Off also referred to a female interview candidate of South Asian descent as a "data robot" and "unrefined" while voicing her preference for hiring a less qualified female Caucasian candidate because the latter candidate was "more polished,

In early 2024, Defendant's Board of Directed requested a brand health study for an ad run. Plaintiff worked closely with Glass Insights to run the study, which showed that a campaign with which Ms. Off had been involved was ineffective. Ms. Off did not provide feedback when Plaintiff showed her the results. At the request of the company's cross-functional leadership team, Plaintiff shared the results with that team. Ms. Off instructed Glass Insights to revise the findings and recommendations, chastised Plaintiff for sharing results with the team, and instructed Plaintiff to bury and hide the findings in the report. Glass Insights adjusted some but not all of the report and Ms. Off threatened to fire Plaintiff if he shared the revised report with anyone. Ms. Off shared inaccurate information with the sales team when they asked for a copy of the report. Plaintiff told Ms. Off he did not think this was appropriate. Ms. Off subsequently removed him from the cross-functional leadership team which negatively impacted his ability to do his job and negatively impacted the company.

In April 2025, Ms. Off terminated Plaintiff's employment, and then left her employment with the company the following month. Plaintiff believes he was replaced by the same Caucasian female candidate whose interview he had attended. The reason Ms. Off gave him for his termination was that he had engaged in "negative chatter about leadership" regarding Ms. Off and another female employee who had been promoted to a position above him. On information and belief, Ms. Off's position was taken by the woman who had previously held the position on an interim basis, making the marketing team all Caucasian females.

Before he was terminated, Plaintiff complained to Ms. Off, an HR representative, and the CFO about the alleged discrimination and harassment he experienced.

Plaintiff asserts causes of action for retaliation, racial discrimination and harassment, gender discrimination, failure to prevent harassment, discrimination and retaliation, and wrongful termination.

III. Standard

The court may, upon a motion made pursuant to Code of Civil Procedure § 435, strike out any "irrelevant, false, or improper matter inserted in any pleading." (Cal. Code Civ. Proc. § 436.) Improperly pled damages claims may be challenged by motion to strike. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 164.)

Punitive damages are generally available where a defendant is guilty of oppression, fraud or malice. (Civ. Code § 3294(a).) "'Malice' is defined as 'conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others'; 'oppression' is 'despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.' 'Despicable conduct' is 'conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citation.] 'The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages.... Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate.'" (*Colucci v. T-Mobile USA, Inc*. (2020) 48 Cal.App.5th 442, 454-55 [citations omitted].) Evidence of negligence, gross negligence, or even recklessness is not sufficient to support an award of punitive damages. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 88.)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff . . . judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255 [citations omitted].) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves*, 157 Cal.App.3d at p. 166 [citations omitted].)

IV. Discussion

A. *Corporate Liability*

Defendant moves to strike the punitive damages request on the ground that Plaintiff fails to allege sufficient facts to support an allegation that the acts at issue were committed by "an officer, director, or managing agent" as required for an award against a business entity, or that Defendant ratified the tortious acts.

Section 3294(b) provides: "An employer shall not be liable for [punitive] damages . . . , based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct . . . or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, [or] ratification ... must be on the part of an officer, director, or managing agent of the corporation."

The last statement of subsection (b) has been construed to require that the officer, director, or managing agent be someone who exercises substantial discretionary authority over decisions that ultimately determine corporate policy. (See *Roby v. McKesson Corp*. (2009) 47 Cal.4th 686, 714.) The corporate policy must be policy that affects a substantial portion of the company and the type likely to come to the attention of corporate leadership. "It is this sort of broad authority that justifies punishing an entire company for an otherwise isolated act of oppression, fraud, or malice." (*Id*. at p. 715.) "The key inquiry thus concerns the employee's authority to change or establish corporate policy. The fact that an employee has a supervisory position with the power to terminate employees under his or her control does not, by itself, render the employee a managing agent. Nor does the fact that an employee supervises a large number of employees necessarily establish that status." (*CRST, Inc. v. Superior Court* (2017) 11 Cal.App.5th 1255, 1273 [citations omitted].)

The court in *CRST* held that a fleet manager was not a managing agent where she served under an operations manager and her main responsibility was to dispatch drivers, while also handling personal issues between drivers and forwarding safety issues to the safety department.

The court in *Roby* held that the plaintiff's supervisor was not a managing agent where she supervised four employees out of over 20,000. The *Roby* court then addressed the type of notice to a managing agent that is required to impose punitive damage liability on the employer under a ratification theory. The court noted that the plaintiff's multiple complaints to her manager about her ongoing conflicts with her supervisor were insufficient to put the employer on specific notice that the supervisor was violating the plaintiff's FEHA rights because she did not link the conflicts to her medical condition. On the other hand, the plaintiff's complaints to two mid-level managers, who the employer did not dispute were managing agents, were sufficient to show a managing agent became aware because the plaintiff expressly linked the harassment to her medical condition by advising the managers that the supervisor's derogatory remarks had to do with her medical condition (sweats and nervous physical behavior). (*Roby*, 47 Cal.4th at p. 715.)

B. *Ms. Off's position with the company.*

Plaintiff does not allege sufficient facts that Ms. Off herself was a managing agent who exercised substantial discretionary authority over decisions that ultimately determined Defendant's corporate policy. Plaintiff alleges only that Ms. Off was Vice President of Marketing who had five people reporting to her, she removed Plaintiff from a cross functional leadership team and subsequently terminated him, and she promoted another team member within their team. He also alleges that there was a separate head of sales, other Vice Presidents, other officers, a Board of Directors, and a cross functional leadership team. (*Id*., ¶¶14, 23, 31, 38, 40, 42, 50.)

Plaintiff argues in his Opposition that he also alleges that Ms. Off controlled brand voice, messaging, pricing and innovation. However, the cited paragraph of the Complaint does not actually allege this. In paragraph 22, Plaintiff alleges that he found himself "ostracized and shut out from inclusion into key discussions and decisions including brand voice, messaging, pricing, innovation and marketing – essentially having his primary role as the Senior Brand Manager castrated and neutered by Ms. Off." On its face, this paragraph does not allege, as Plaintiff claims, that Ms. Off "controlled" the brand voice, messaging, pricing, innovation, and marketing of the company.

Plaintiff argues that his allegations are similar to the facts in *White v. Ultramar, Inc*. (1999) 21 Cal.4th 563 and *Davis v. Kiewit Pacific Co*. (2013) 220 Cal.App.4th 358. In *White*, the court upheld the trial court's finding that the plaintiff's supervisor Salla was a managing agent where Salla could fire the plaintiff and was the zone manager who managed eight stores and at least 65 employees, individual store managers reported to her, and she reported to department heads in the company's retail management department. (See *White*, 21 Cal.4th at p. 577.) The court stated: "The supervision of eight retail stores and sixty-five employees is a significant aspect of Ultramar's business. The testimony of Salla's superiors establishes that they delegated most, if not all, of the responsibility for running these stores to her. The fact that Salla spoke with other employees and consulted the human resources department before firing plaintiff does not detract from her admitted ability to act independently of those sources. In sum, Salla exercised substantial discretionary authority over vital aspects of Ultramar's business that included managing numerous stores on a daily basis and making significant decisions affecting both store and company policy. In firing White for testifying at an unemployment hearing, Salla exercised substantial discretionary authority over decisions that ultimately determined corporate policy in a most crucial aspect of Ultramar's business." (*Ibid*.)

In *Davis*, the court held that the plaintiff raised a triable issue of fact as to whether Preedy, the project manager for a large construction project, was a managing agent of the construction company who employed the plaintiff. The court stated: "Preedy, as the Project's manager, was Kiewit's top onsite manager. He had the responsibility to oversee and manage the $170 million project, including over 100 Kiewit employees working on the site. Preedy's duties included interfacing with stakeholders on the Project, contract administration, operations and personnel oversight, and making sure the Project was completed according to the contract. In performing those duties, a trier of fact could reasonably infer he exercised substantial authority and discretion regarding a broad range of issues involving the Project, including compliance with Kiewit's policies and the hiring, supervision, and laying off of Project employees. Absent evidence showing that management of a $170 million project with supervision of 100 employees is an insignificant part of Kiewit's business, a trier of fact could reasonably infer from the above evidence that Preedy 'exercised substantial discretionary authority over [significant] aspects of [Kiewit's] business' and therefore was a managing agent of Kiewit." (*Id*. at p. 370.) The court also found that the plaintiff raised a triable issue of fact as to whether Lochner, the company's EEO officer, was a managing agent, stating: "Lochner, as Kiewit's EEO officer, had the duties and responsibilities to enforce its policies against discrimination, retaliation, and harassment based on gender and other protected classes . . . In his declaration, Lochner . . . . stated he 'conducted training for staff employees (supervisory personnel); took and responded to employee complaints about EEO and other issues; and conducted or oversaw investigations regarding a variety of employee relations issues including alleged discrimination, retaliation and/or harassment.'" (*Id*. at pp. 372-373.) The company policy manual also described Lochner's duties as including the administration and coordination of the affirmative action program, investigations into complaints of discrimination and implementation of corrective action, the dissemination of EEO policy, the periodic review of employment records to make sure the program and policy are being administered on a nondiscriminatory basis, and the initiation of changes to the program and policies. (*Id*. at p. 373.)

White and *Davis* are distinguishable. In both cases, the individual at issue had significant authority and/or control over corporate policy. Here, Plaintiff alleges only that Ms. Off had five reports in a marketing team and could promote and terminate within that team, and could assign or remove the individuals reporting to her from a cross functional leadership team. These allegations are insufficient to allege that Off had the authority to change or establish corporate policy. (See *CRST*, 11 Cal.App.5th at p. 1273.)

C. *Ms. Kees and Mr. Fox/Ratification*

Plaintiff also alleges insufficient facts to show ratification by a managing agent. While Plaintiff alleges that he spoke with HR representative Kari Kees and CFO Steve Fox, there are no allegations that either has the ability to change or establish corporate policy. Title alone is not dispositive. (*White*, 21 Cal.4th at p. 577 [principal liability does not depend on managerial level]; *Colucci*, 48 Cal.App.5th at p. 453 [determination does not hinge on employee's level in corporate hierarchy].) Further, with respect to Mr. Fox, Plaintiff alleges that Mr. Fox told him that these were issues that needed to be addressed by another person, i.e., the CEO. (Complaint, ¶50.) In other words, Plaintiff was told that Mr. Fox was not an individual who could address Plaintiff's complaints or provide the attention or response Plaintiff was seeking.

In addition, Plaintiff does not specifically allege that he told either individual that he believed the allegedly offending conduct towards him was related to his race or gender. With respect to Ms. Kees, Plaintiff alleges only that he complained "about the gender and raced-based harassment and discrimination that he largely experienced at the hands of Ms. Off during his tenure at EMJ. This included Mr. Sevugan's feelings of marginalization, gaslighting and ostracization as the only male and only minority on Ms. Off's team." (*Id.*, ¶49.) This allegation does not specify whether Plaintiff actually articulated facts to Ms. Kees that would put Ms. Kees on notice of discrimination or harassment based on race or gender. Similarly, as to Mr. Fox, Plaintiff alleges only that he complained to Mr. Fox "about how he felt discriminated against by and retaliated against by Ms. Off following various actions that she took against him beginning in late August 2024 as described herein as well as Mr. Sevugan's subsequent demotion by Ms. Off in February 2025." (*Id.*, ¶50.)

Again, this allegation does not specify whether Plaintiff made Mr. Fox aware of facts that had anything to do with Plaintiff's race or gender. As a result, Plaintiff's allegations in his current Complaint are insufficient to impose punitive damages liability against Defendant. (See *Roby*, 47 Cal.4th at p. 715; see also *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 726 ["Corporate ratification in the punitive damage context requires actual knowledge of the conduct and its outrageous nature"].)

V. <u>Oppression, Fraud or Malice</u>

Because the Court grants Defendant's motion on the ground that Plaintiff has not alleged sufficient facts for purposes of corporate liability, the Court does not address Defendant's additional arguments that Plaintiff fails to allege sufficient facts to support his allegations of oppression, fraud or malice.

I. <u>Government Code Section 8547.8</u>

Defendant moves to strike Plaintiff's reference to Government Code Section 8547.8(c) on the ground that punitive damages under this section are available only to state employees. (Gov. Code Section 8547.2(b); 8547.8.) Plaintiff is not a state employee. Plaintiff does not oppose this part of Defendant's motion. The motion to strike the reference to punitive damages under Section 8547.8 is granted, without leave to amend.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010069

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: BSM CONSTRUCTION

vs.

DEFENDANT: CLOCKTOWER MARIN, LLC

NATURE OF PROCEEDINGS: MOTION – STAY

RULING

Plaintiff BSM Construction, Inc. filed a notice and motion on June 10, 2026 seeking an order to stay further proceedings pending completion of arbitration. This motion is based on an agreement by the parties to arbitrate the case.

Defendant did not file an Opposition. The failure to oppose is considered consent to the request. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

The motion is GRANTED and the matter is stayed. A case management conference is set for March 15, 2027, at 9 a.m. in this department for an update regarding the arbitration progress.

Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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